

STATE OF MICHIGAN
IN THE 14th CIRCUIT FOR THE COUNTY OF MUSKEGON

ANDREW JAMES PIGORS,
Plaintiff,

-vs-

EMILY ANN WATSON,
Defendant.

Case No. 2024-001507-DC

HON. JENNY L. MCNEILL,
Circuit Court Judge

**COURT ORDERED JUDGMENT OF
CUSTODY, PARENTING TIME, AND
CHILD SUPPORT**

ANDREW JAMES PIGORS
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**COURT ORDERED JUDGMENT OF
CUSTODY, PARENTING TIME, AND CHILD SUPPORT**

At a session of said Court held at the County Building
in the City of Muskegon, County and State aforesaid
on the ____ Day of _____, 2024

PRESENT: HONORABLE JENNY L. MCNEILL
CIRCUIT COURT JUDGE

A Non-Jury Trial Regarding Custody, Parenting Time, and Child Support was conducted on July 17, 2024, In Person before Judge Jenny L. McNeill. The Court having heard testimony and arguments, having reviewed admitted exhibits, made the following Order from the Bench, with the Order being enforceable effective July 17, 2024, the Court ruled as follows:

NOW, THEREFORE, IT IS ORDERED that Plaintiff filed a Complaint for Custody, Parenting Time and Child on April 1, 2024.

IT IS FURTHER ORDERED that parties participated in a Facilitative Information Gathering Conference which resulted in a temporary Order titled Ex Parte Order for Custody, Parenting Time, and Child Support Following Facilitative Information Gathering Conference, entered on April 29, 2024.

IT IS FURTHER ORDERED that the Ex Parte Order for Custody, Parenting Time, and Child Support Following Facilitative Information Gathering Conference is dismissed.

IT IS FURTHER ORDERED that this Judgment of Custody, Parenting Time, and Child Support is the initial Order regarding custody and parenting time, issued by this Court.

IT IS FURTHER ORDERED that Plaintiff filed six (6) Motions on July 16, 2024, the day before this Trial, identified as: Motion for Parenting Time and Contempt of Court; Motion for Protective Order and Sanctions; Motion to Quash Subpoenas and for Protective Order; Motion to Dismiss Objections in Custody Case; Motion to Impeach Witness; and a Motion to Modify Parenting Time and Drop-Off Arrangements.

IT IS FURTHER ORDERED that Plaintiff's Motions are hereby denied as they are frivolous Motions for which Plaintiff has already been instructed by this Court that if he files an additional frivolous Motion, he will incur sanctions. Plaintiff's filing of these Motions was done as harassment to Defendant and to the Court, along with an abuse of the Court system. Plaintiff shall incur sanctions if he files another frivolous Motion.

IT IS FURTHER ORDERED that the minor child at issue is Lincoln Watson, almost two (2) years of age.

IT IS FURTHER ORDERED that an Established Custodial Environment exists with both parties, therefore the burden of proof in this case is the clear and convincing evidence standard.

IT IS FURTHER ORDERED that the Court has evaluated the Best Interest Factors and finds the following:

- a. The love, affection, and other emotional ties existing between the parties involved and the child.**

The Court finds that both parents have a strong bond with the minor child. This Factor is equal between the parties.

- b. The capacity and disposition of the parties involved to give the child love, affection, guidance, and continuation of the education and raising of the child in his or her religion or creed, if any.**

The Court finds that neither has a religious affiliation. The Court finds that although the child has a bond with both parties, the concern is the capacity and disposition to give the child love, affection, and guidance. Plaintiff's/Father's capacity and disposition present as an issue for the Court. However, the Court finds that both parties are capable of providing the minor child with love, affection, and guidance. This Factor is equal between the parties.

- c. The capacity and disposition of the parties involved to provide the child with food, clothing, medical care or other remedial care recognized and permitted under the laws of this state in place of medical care, and other material needs.**

The Court finds that Plaintiff/Father is currently self-employed and was recently terminated by employer, IndiGrow. Defendant/Mother has worked for Kent County Prosecutor's Office for nine (9) years with multiple promotions during that time. Defendant/Mother has always provided the minor child with health insurance and just

recently learned that Plaintiff/Father has obtained Medicaid coverage on the minor child. This Factor favors Defendant/Mother.

d. The length of time the child has lived in a stable, satisfactory environment and the desirability of maintaining continuity.

Plaintiff/Father resided in Defendant's/Mother's home with Defendant/Mother and the minor child since the child's birth. When the parties separated in November 2023, Plaintiff/Father lived with a friend and the friend's family. Based upon the friend's testimony, that arrangement did not go well. Plaintiff/Father has secured his own living arrangement and has done some repair work to the home. Plaintiff/Father has an eviction pending regarding his living arrangement. Plaintiff/Father does not have significant funds after having lost his job and recently working in self-employment there are additional concerns regarding the eviction.

Defendant/Mother has her own 3-bedroom home that she purchased in 2020. Defendant/Mother is current on her mortgage.

Plaintiff/Father does not have a stable and satisfactory environment for the minor child and the issue of continuity of his living arrangement is questionable given the pending eviction. This Factor favors Defendant/Mother.

e. The permanence, as a family unit, of the existing or proposed custodial home or homes.

The Court has already addressed part of these concerns in Factor d. Defendant/Mother lives in her home with the minor child, her other child, her brother, and her niece. Plaintiff/Father lives by himself. This Factor favors Defendant/Mother.

f. The moral fitness of the parties involved.

Plaintiff's/Father's criminal record that was testified to is old and not significant to the Court. There is no criminal history regarding Defendant/Mother. The real concern is the moral fitness of the parties as to how they will function as a parent.

The Court has reviewed the police reports that were admitted into evidence and has reviewed the communications contained in the AppClose transcript that was admitted into evidence. Plaintiff/Father fails to understand how his behavior, such as calling multiple police departments on the same day regarding Defendant/Mother, and how he speaks to Defendant/Mother in the AppClose transcript, amount to badgering and harassment inflicted on Defendant/Mother. Plaintiff does not appreciate that his behaviors are creating the problem. This Factor favors Defendant/Mother.

g. The mental and physical health of the parties involved.

The testimony was that Plaintiff/Father has been diagnosed with ADD for which he does not take prescribed medications but does participate in counseling once a month. Plaintiff/Father utilizes marijuana to medicate his ADD. Marijuana is legal, but it is concerning as to whether or not the marijuana laws are being followed given the child gets out of the car and smells of marijuana. Defendant/Mother does not have any mental or physical health concerns. This Factor slightly favors Defendant/Mother.

h. The home, school, and community record of the child.

The child is young and is not yet enrolled in school. The testimony was that the minor child and his sibling have a very close bond. Regarding the community record, it appears that the maternal grandmother has been providing childcare both when the parties were still in a relationship and has continued to provide childcare since the